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26-CIV-03505 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER COMPANY, ET AL.
LINE 10

SHANNON PEKARY
PALO ALTO PARK MUTUAL WATER COMPANY

PRO PER
BRIAN A. BARNHORST

PLAINTIFF: SHANNON PEKARY'S MOTION FOR PRODUCTION OF ELECTION RECORDS AND DETERMINATION OF SCOPE OF SECTION 7616 PROCEEDINGS

TENTATIVE RULING:

Plaintiff Shannon Pekary's Motion for Production and Determination of Scope of Section 7616 Proceedings is DENIED WITHOUT PREJUDICE.

Per the notice filed July 2, 2026, the request for an order compelling production of election records is moot. The request for an order determining whether a determination of the validity of the vote approving the challenged bylaw amendments remains at issue.

The Court previously expressed some doubt as to whether the scope of this proceeding under Corporations Code section 7616 encompasses the issue of whether the bylaw amendments were validly approved by the members at the 2025 annual meeting. This doubt arises in part due to the fact that former section 315 of the Civil Code—one of the predecessors of Corporations Code section 7616—"was enacted in order that court might have power to proceed in a summary manner to test the title of directors to office without recourse to the slow and cumbersome proceeding of quo warranto." (*Boericke v. Weise* (1945) 68 Cal.App.2d 407, 410.)

The text of former section 315 did not limit its scope to "any election or appointment of any director of any corporation" (Corp. Code, § 7616, subd. (a)) but permitted, "[u]pon the application of any person or body corporate aggrieved by any election held by any corporate body, the district court of the district in which such election is held must proceed forth with to hear the allegations and proofs of the parties, or otherwise inquire into the matters of complaint, and thereupon confirm the election, order a new one, or direct such other relief in the premises as accords with right and justice." (*Wickersham v. Brittan* (1892) 93 Cal. 34, 36 [italics added], quoting former Civil Code § 315.)

The language of the modern provisions of the Corporations Code, which permit courts to determine the validity of "any election or appointment of any director of any corporation" rather than "any election of a corporate body," supports a conclusion that the Legislature was limiting the reach of Section 7616 only to challenges regarding a director's office and voting rights related thereto.

That being said, there is no indication this motion has been served on any party. While no other party was entitled to notice by statute, because none had appeared at the time the motion was filed (see Code Civ. Proc., § 1010), "notice is usually considered essential in any application affecting the rights of the adverse party," "[e]ven if no statute makes notice a condition. (6 Witkin, Cal. Proc. (6th ed. 2026) Proceedings Without Trial, § 7; see *McDonald v. Severy* (1936) 6 Cal.2d 629, 631 ["general rule is that notice of motion must be given whenever the order sought may affect the rights of an adverse party"].)

Defendant Palo Alto Mutual Water Company should be afforded notice and an opportunity to respond so as to comport with principles of due process. And, given the impending trial date, the Court shall deem the motion—and any amended motion that addresses the above concern discussed above—to be one in limine to be served, briefed, and decided in accordance with July 6, 2026 Pretrial Order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the Water Company shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

UD LAW AND MOTION CALENDAR
MONDAY, JULY 13, 2026

02:00 PM

22-CIV-01897 SHUYIN NG, ET AL. VS. CHRISTINE M. BOLTS
LINE 11

SHUYIN NG
CHRISTINE M. BOLTS

CHRISTOPHER W. ROSE
MARQUISHA L. MCGRUDER

DEFENDANT CHRISTINE BOLTS' MOTION TO COMPEL WRITTEN DISCOVERY AND REQUEST FOR MONETARY SANCTIONS *(continued from 06/01/26)*

TENTATIVE RULING:

Defendants motion to compel is denied. Plaintiff's request for sanctions is also denied.

On October 7, 2025 Defendant filed a motion to compel that was scheduled for June 1, 2026. It was purportedly unopposed.

On June 1, 2026 the Court continued the hearing to July 13, 2026 and Ordered the parties to an IDC on June 22, 2026. It is of note that Defendant twice failed to follow Court rules and direction in preparation of the Order and the Court was forced to reject the first Order and edit the second Order, which also, at least, implicitly reminded the Defendant of the Zoom address of the IDC.

On June 22, 2026 Defendant failed to attend the IDC (by acknowledged mistake), appearing in Department 11 rather than Department 30.

At the conclusion of the IDC, Commissioner Elliot's minutes reflect (in part): "The Commissioner held a brief discussion with Attorney Rose. The issues presented by this IDC appear to be relatively minor, and it seems to the Commissioner that they can - and should - be resolved without the need for the 07/13/2026 hearing on Defendant's motion to compel. It is unclear to what extent counsel have engaged in good faith meet and confer. The Commissioner strongly encourages counsel to engage, or reengage as the case may be, in good faith and straightforward meet and confer to clarify the issues that may need resolution herein. The IDC was concluded at 2:15 p.m. NOTE: After conclusion of the IDC and during preparation of this Minute Order, the Commissioner was informed that Attorney Marquisha McGruder appeared in Dept. 11 in an attempt to join the IDC. Judge Silberman's instructions in the 06/15/2026 Order were clear, however, that the IDC was to take place in Dept. 30, and the Zoom credentials for Dept. 30 were provided in the Order. If the parties would like to reset the IDC, they are encouraged to promptly email the IDC Clerk and request the earliest possible date."
